



AFTER

Even as Northern views on abolition changed in the 1850s, an 11-year lawsuit came to fruition and fueled the abolitionist cause.

THE DRED SCOTT CASE

Since the mid-1840s a lawsuit brought by enslaved man Dred Scott had gradually worked its way from the courts of Missouri to the U.S. Supreme Court. Scott claimed that when his enslaver had moved to the free territories in the upper Midwest, he and his family were entitled to their freedom.

In January 1857, **Chief Justice Roger Taney**, a Democrat, delivered a decision that shocked the North. He ruled that Scott's case had no legal standing, since **Black Americans could never become citizens** and were "unfit to associate with the white race." He declared that **Congress had no right to restrict slavery in the territories**. As Southerners celebrated, Republicans seized on the decision as more evidence of a Slave Power conspiracy and warned that it would lead to the legalizing of slavery across the nation.

The decision in fact **aided the anti-slavery cause** and swelled the new Republican party, leading to its [election victory in 1860](#).



DRED SCOTT